



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Koronkiewicz v Lionel, 2025 ONLTB 96862

Date: 2025-12-18

File Number: LTB-L-032598-25

In the matter of: 2, 135 WOODWARD AVE
YORK ON M9N2J4

Between: Johannes Alfred Koronkiewicz Landlords
Brigida Koronkiewicz

And

Dayna Lionel Tenant

Johannes Alfred Koronkiewicz and Brigida Koronkiewicz (the 'Landlord') applied for an order to terminate the tenancy and evict Dayna Lionel (the 'Tenant') because the Landlords in good faith require possession of the rental unit for the purpose of residential occupation for at least one year. The Landlords also claimed compensation for each day the Tenant remained in the unit after the termination date.

This application was heard by videoconference on September 11, 2025.

The Landlords, the Landlords' legal representative, Eric Spalvieri, the Tenant, and the Tenant's legal representative, Jimmy Gangadin, attended the hearing.

Determinations:

1. The Tenant was in possession of the rental unit on the date the application was filed and remained in the rental unit as of the hearing date.
2. On April 10, 2025, the Landlords gave the Tenant an N12 notice of termination, deemed served on April 15, 2025 by mail. The termination date in the notice is June 30, 2025. The Landlords claim that they require vacant possession of the rental unit for the purpose of residential occupancy for the Landlords.

3. The Tenant does not dispute that the Landlords gave them a cheque dated April 8, 2024 for \$996.79 with respect to the one month's rent of compensation as required by section 55.1 of the *Residential Tenancies Act, 2006* (the 'Act'). As of the hearing date, the Tenant admits that they had not cashed the cheque and that it was now likely stale-dated.
4. The Landlords have complied with the requirements under subsection 72(1)(a) of the Act by filing declarations which indicate that they require the rental unit in good faith for their own personal use for at least one year.
5. The residential complex comprises of 11 rental units in a low-rise building.

Landlord's Evidence

6. The Landlord, Johannes A. Koronkiewicz (JK), testified that they are currently living in their mother-in-laws house at 25 Larchwood Road. The Landlords moved into that property at the beginning of Covid and were caregivers for his wife's elderly parents. On March 11, 2025 his mother-in-law passed away and a funeral was held on March 17, 2025.
7. JK testified that after the funeral they had much anxiety and they reached out to their legal representative to ask what their options were. They also testified that they really wanted to compensate the Tenant.
8. JK further testified that they are required to vacate their current home as a result of their late mothers-in-law's Will which states in part that the named Landlord, Brigida Koronkiewicz (BK) can either have right of first refusal to purchase their current residence, or in the alternative, that the estate trustees are to sell the property and the proceeds of the sale are to be distributed according to the Will. The Disposition Date of the Will comes into effect on one year following the date of death, which in this case would be by March 10, 2026. The Landlords submit that they must vacate by this date as the house must be sold.
9. JK submits that they can't afford to purchase the property because they do not have the financial means to do so. They provided parts of their income tax statements showing what their personal income was for the year 2024. In short, their combined income is less than \$30,000.00 per year. They further state this includes any rental income and expenses from 135 Woodward Avenue, however, they did not provide any additional evidence supporting their rental income or expenses. I find it difficult to believe that with the residential complex consisting of 11 units, that their entire revenue would only be \$28,975.00 before deductions. In June of 2025 for instance, the Landlord admits that one of the units rents out for \$2,400.00 per month. Under cross examination they would not expand on any further rental income.
10. JK further submit that their brother and nephew are already asking when they are moving out of the property, however, neither the brother or the nephew testified at the hearing to

support this assertion. Additionally, despite being given the opportunity to testify, BK, elected not to and relied on the testimony of JK to support this assertion.

11. JK then went on to state that they would be homeless if not given the opportunity to move into this particular unit. They say this unit out of all 11 units is the most supportive for their needs as it has no stairs to climb to go up and down for laundry because it is on the same floor. JK submits that BK has knee issues and cannot do stairs, however, they provided no medical evidence to support this.
12. Under cross examination, JK admitted that their current residence was not yet listed for sale and they had no knowledge of when the property would be sold. Additionally, while they state that there was a realtor that attended to assess the property according to their brother, neither JK nor BK were present for the realtor and they could not verify which date, if any a realtor attended the property to discuss the sale.
13. I found JK's evidence on this point quite contradictory since BK is one of the named estate trustees in the Will and ought to be directly involved of the sale of the property on this basis. Especially given the need to serve notice to evict the Tenant on the premise that they would require the rental unit for their own use because their current residence must be sold because they stated they cannot afford to purchase it.
14. JK further admitted under cross examination that there are actually 5 stairs to the laundry area which contradicts their earlier statement that there were no stairs which suited their needs the most.

Tenant's Evidence

15. The Tenant submits that the Landlords served the N12 Notice out of retaliation for them contacting the City Property Standards on or about early March of 2025 because the Landlord was not addressing a long-standing maintenance issue regarding an extensive leak in the unit years prior which caused their flooring to bulge and swell. However, under cross examination the Tenant admitted that it was not until the end of March that they contacted 311 for their maintenance complaint after first indicating it was the beginning of March.
16. The Tenant further testified that on April 29, 2025 the Landlord entered her unit to investigate the damage and instead took pictures of her personal belongings rather than repair the stove or windows. She stated this in support of her assertion that she reached out to 311 in March of 2025 and this was a follow up visit from the Landlord based on their Order to Comply from the City.
17. Neither the Tenant nor the Landlord submitted a copy of the Order to Comply, so it is difficult to determine the timing of the complaint relative to the issuance of the N12 Notice.

Analysis

18. The courts have provided significant guidance to the Board in interpreting the “good faith” requirement” contained in section 48 of the Act.

19. In *Feeny v. Noble*, 1994 CanLII 10538 (ON SC), 19 O.R. (3d) 762 (“*Feeny*”), the Ontario Divisional Court made a decision under a similar provision in subsection 103(1) of the Landlord and Tenant Act, R.S.O. 1990, c. L.7, and held that:

“...the test of good faith is a genuine intention to occupy the premises and not the reasonableness of the landlord’s proposal”

20. In *Salter v. Beljinac*, 2001 CanLII 40231 (ON SCDC), [2001] O.J. No 2792, the Divisional Court revisited the “good faith” requirement under subsection 51(1) of the Tenant Protection Act, 1997, S.O. 1997, c. 24. The Court referred to *Feeny*, supra, and held that:

“...the legal standard for the Tribunal as finder of fact remains the same under s. 51(1) of the TPA as seen in the case law interpreting s. 103(1) of the LTA.”

21. More recently, in *Fava v. Harrison*, 2014 ONSC 3352 (CanLII) (“*Fava*”), the Divisional Court, in considering the good faith requirement in s.48(1) of this Act, determined as follows:

*“We accept, as reflected in Salter, supra, that the motives of the landlord in seeking possession of the property are largely irrelevant and that the only issue **is whether the landlord has a genuine intent to reside in the property**. However, that does not mean that the Board cannot consider the conduct and the motives of the landlord in order to draw inferences as to whether the landlord desires, in good faith, to occupy the property.” [emphasis added].*

22. It is plain from the case law, especially the more recent decision in *Fava*, that the Divisional Court has granted considerable scope to the Board to enquire into the motives and conduct of a landlord in determining the issue of good faith and to draw inferences about the landlord’s intentions based upon the totality of the evidence presented.

23. The Landlords here bear the onus of proving, on a balance of probabilities, that they, in good faith, require the residential unit for the purposes of their own residential occupation.

24. Based upon the totality of the evidence before me, I am not satisfied that the Landlords have discharged this onus upon them. I am not convinced that the Landlord have a “... ***genuine intent to reside in the property***”.

25. The totality of evidence here, in my view, does not support a genuine intention on the part of the Landlords. Only one of the named Landlords testified at the hearing despite the

opportunity for both of them to give evidence. JK's testimony regarding their lack of knowledge about the sale of their current residence is contradictory to their assertion that the property must be sold as a result of BK's estate interests.

26. BK did not corroborate any of JK's testimony regarding their brother or nephews demand to vacate their current residence and I find the testimony of JK regarding there being no stairs and then their admission that there is stairs to use the laundry contradictory. The failure to disclose or provide any further details about their revenue at the residential complex or any further financial disclosure suggests that they are not in financial distress as they indicated and, for these reasons, I find the Landlord's evidence with respect to their genuine intention lacks credibility.

27. For these reasons, the application must be dismissed.

It is ordered that:

1. The Landlords' application is dismissed.

December 18, 2025

Date Issued

Terri van Huisstede

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.